



Bill Number: H.B. 2133

Shamp Floor Amendment

Reference to: JUDICIARY AND ELECTIONS

Committee Amendment

Amendment drafted by: Zack Dean

FLOOR AMENDMENT EXPLANATION

1. Removes the prohibition against commercial entities retaining any identifying information of a person depicted in sexual material for verification purposes.
2. Removes the ability of the Attorney General to inspect such records on request.
3. Expands acceptable verification methods to include providing proof that the sexual material was created before the enactment of the federal Child Protection and Obscenity Enforcement Act of 1988.
4. Provides that such proof may include:
 - a) an affidavit from the uploader or custodian of the records;
 - b) contemporaneous publication or copyright records;
 - c) technical metadata; or
 - d) any other evidence that reasonably establishes the date the sexual material was first fixed in a tangible medium.
5. Exempts commercial entities from requirements relating to consent verification if it is clear to a reasonable viewer that an image, recording or video has been digitally manipulated and is created for the purposes of parody, comedy, artistic expression or criticism of matters of public concern.
6. Applies this same exemption to the unlawful disclosure of images depicting states of nudity or specific sexual activities.
7. Removes the definition of *synthetic depiction* from statute relating to the unlawful disclosure of nude images and modifies the definitions of *image* and *identifiable person*.

SHAMP FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2133
(Reference to JUDICIARY AND ELECTIONS Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-1425, Arizona Revised Statutes, is amended to
3 read:

4 13-1425. Unlawful disclosure of images depicting states of
5 nudity or specific sexual activities;
6 classification; definitions

7 A. It is unlawful for a person to intentionally disclose an image
8 of another person who is identifiable from the image itself or from
9 information displayed in connection with the image if all of the following
10 apply:

11 1. The person in the image is depicted in a state of nudity or is
12 engaged in specific sexual activities.

13 2. The depicted person has a reasonable expectation of privacy.
14 Evidence that a person has sent an image to another person using an
15 electronic device does not, on its own, remove the person's reasonable
16 expectation of privacy for that image. Unless the realistic pictorial
17 representation is created or modified by the depicted person, this

1 paragraph does not apply to an image that is a realistic pictorial
2 representation.

3 3. The image is disclosed with the intent to harm, harass,
4 intimidate, threaten or coerce the depicted person.

5 B. This section does not apply to any of the following:

6 1. The reporting of unlawful conduct.

7 2. Lawful and common practices of law enforcement, criminal
8 reporting, legal proceedings or medical treatment.

9 3. Images involving voluntary exposure in a public or commercial
10 setting.

11 4. An interactive computer service, as defined in 47 United States
12 Code section 230(f)(2), or an information service or cable service, as
13 defined in 47 United States Code section 153, with regard to content
14 wholly provided by another party.

15 5. Any disclosure that is made with the consent of the person who
16 is depicted in the image.

17 {{C. THIS SECTION DOES NOT APPLY IF IT IS CLEAR TO A REASONABLE
18 VIEWER THAT THE IMAGE, RECORDING OR VIDEO HAS BEEN BOTH:

19 1. DIGITALLY MANIPULATED.

20 2. CREATED FOR THE PURPOSES OF ANY OF THE FOLLOWING:

21 (a) PARODY.

22 (b) COMEDY.

23 (c) ARTISTIC EXPRESSION.

24 (d) CRITICISM OF MATTERS OF PUBLIC CONCERN.}}

25 ~~{{C.}}~~{{D.}} A violation of this section is a class 5 felony,
26 except that a violation of this section is a:

27 1. Class 4 felony if the image is disclosed by electronic means.

28 2. Class 1 misdemeanor if a person threatens to disclose but does
29 not disclose an image that if disclosed would be a violation of this
30 section or if the image is a realistic pictorial representation.

31 ~~{{D.}}~~{{E.}} For the purposes of this section:

32 1. "Disclose" means display, distribute, publish, advertise or
33 offer.

34 2. "Disclosed by electronic means" means delivery to an email
35 address, mobile device, tablet or other electronic device and includes
36 disclosure on a website.

37 3. "Harm" means physical injury, financial injury or serious
38 emotional distress.

39 4. "IDENTIFIABLE ~~{{INDIVIDUAL}}~~{{PERSON}}" MEANS A PERSON WHO IS
40 RECOGNIZABLE BY ANY PERSON, INCLUDING THE PERSON ~~{{THEMSELF}}~~{{HIMSELF}},
41 BY ANY PART OF THE PERSON OR BY ANY OTHER INFORMATION THAT IS PART OF THE
42 DEPICTION.

43 ~~4.~~ 5. "Image" means a photograph, videotape, film, digital
44 recording~~{{, or}}~~{{or}} realistic pictorial representation ~~{{OR SYNTHETIC~~
45 ~~DEPICTION OF AN IDENTIFIABLE INDIVIDUAL}}~~.

46 ~~5.~~ 6. "Realistic pictorial representation":

47 (a) Means an image that is created or modified to reasonably appear
48 to be an actual image of an identifiable person depicted in a state of

1 nudity or engaged in specific sexual activities that did not actually
2 occur.

3 (b) Does not include an image made in the public interest,
4 including scientific or educational activities, a newsworthy event or an
5 issue of public concern.

6 ~~6-~~ 7. "Reasonable expectation of privacy" means the person
7 exhibits an actual expectation of privacy and the expectation is
8 reasonable.

9 ~~7-~~ 8. "Specific sexual activities" has the same meaning prescribed
10 in section 11-811, subsection E, paragraph 18, subdivisions (a) and (b).

11 ~~8-~~ 9. "State of nudity" has the same meaning prescribed in section
12 11-811, subsection E, paragraph 14, subdivision (a).

13 ~~{{10. "SYNTHETIC DEPICTION" MEANS ANY VISUAL DEPICTION THAT IS
14 CREATED OR ALTERED THROUGH THE USE OF ARTIFICIAL INTELLIGENCE, DIGITAL
15 MANIPULATION OR OTHER TECHNOLOGY AND THAT APPEARS TO DEPICT AN
16 IDENTIFIABLE INDIVIDUAL BUT THAT DOES NOT REPRESENT AN ACTUAL EVENT OR
17 CONDUCT INVOLVING THAT INDIVIDUAL.}}~~

18 Sec. 2. Heading change; transfer and renumber

19 A. The chapter heading of title 18, chapter 7, Arizona Revised
20 Statutes, is changed from "GOVERNMENT INFORMATION TECHNOLOGY USE" to
21 "SEXUAL MATERIAL ON THE INTERNET".

22 B. Title 18, chapter 7, Arizona Revised Statutes, is transferred
23 and renumbered for placement in title 44, Arizona Revised Statutes, as
24 chapter 30. Title 18, chapter 7, article 1, Arizona Revised Statutes, is
25 transferred and renumbered for placement in title 44, chapter 30, Arizona
26 Revised Statutes, as article 1. Section 18-701, Arizona Revised Statutes,
27 is transferred and renumbered for placement in title 44, chapter 30,
28 article 1, Arizona Revised Statutes, as section 44-7301.

29 Sec. 3. Title 44, chapter 30, article 1, Arizona Revised Statutes,
30 as transferred and renumbered, is amended by adding section 44-7302, to
31 read:

32 44-7302. Sexual material on the internet; verification and
33 consent requirements; records; applicability;
34 civil penalties; definitions

35 A. A COMMERCIAL ENTITY THAT KNOWINGLY AND INTENTIONALLY PUBLISHES
36 OR DISTRIBUTES, ~~[OR]~~ [AND] ALLOWS THE PUBLICATION OR DISTRIBUTION OF,
37 SEXUAL MATERIAL ON AN INTERNET WEBSITE SHALL DO ALL OF THE FOLLOWING:

38 1. REQUIRE EACH PERSON WHO UPLOADS OR PLACES THE SEXUAL MATERIAL ON
39 AN INTERNET WEBSITE TO VERIFY, USING REASONABLE ~~{{CONSENT}}~~ VERIFICATION
40 METHODS, ~~{{THAT EACH INDIVIDUAL WHO IS DEPICTED IN THE SEXUAL
41 MATERIAL}}{{EITHER OF THE FOLLOWING}}:~~

42 (a) ~~{{HAS PROVIDED EXPLICIT INFORMED CONSENT TO THE CREATION,
43 DISTRIBUTION AND PUBLICATION OF}} {{THAT EACH INDIVIDUAL WHO IS DEPICTED
44 IN}}THE SEXUAL MATERIAL{{-~~

45 ~~(b)}} {{HAS PROVIDED EXPLICIT INFORMED CONSENT TO THE CREATION,
46 DISTRIBUTION AND PUBLICATION OF THE SEXUAL MATERIAL AND}}WAS AT LEAST
47 EIGHTEEN YEARS OF AGE AT THE TIME THE ~~{{SEXUAL}}~~ MATERIAL WAS CREATED.~~

1 ~~{{(b.) THAT THE SEXUAL MATERIAL WAS CREATED BEFORE THE ENACTMENT OF~~
2 ~~THE CHILD PROTECTION AND OBSCENITY ENFORCEMENT ACT OF 1988 (P.L. 100-690:~~
3 ~~102 STAT. 4485) BY USING ANY OF THE FOLLOWING:~~

4 ~~(i) AN AFFIDAVIT FROM THE UPLOADER OR CUSTODIAN OF RECORDS.~~

5 ~~(ii) CONTEMPORANEOUS PUBLICATION OR COPYRIGHT RECORDS.~~

6 ~~(iii) TECHNICAL METADATA.~~

7 ~~(iv) ANY OTHER EVIDENCE THAT REASONABLY ESTABLISHES THE DATE THE~~
8 ~~SEXUAL MATERIAL WAS FIRST FIXED IN A TANGIBLE MEDIUM.}}~~

9 2. MAINTAIN RECORDS OF THE VERIFICATION FOR AT LEAST SEVEN YEARS.

10 ~~{{ON REQUEST, THE ATTORNEY GENERAL MAY INSPECT THE RECORDS.}}~~

11 3. IMPLEMENT REASONABLE MEASURES TO PREVENT THE UPLOADING OF SEXUAL
12 MATERIAL THAT DOES NOT HAVE VERIFIED CONSENT, INCLUDING USING AUTOMATED
13 DETECTION TOOLS WHERE FEASIBLE.

14 ~~{{B. A COMMERCIAL ENTITY MAY NOT RETAIN ANY IDENTIFYING INFORMATION~~
15 ~~OF THE DEPICTED PERSON AFTER THE VERIFICATION IS COMPLETE EXCEPT AS~~
16 ~~REQUIRED FOR THE RECORDKEEPING REQUIREMENTS PRESCRIBED IN THIS SECTION.~~
17 ~~THE COMMERCIAL ENTITY MAY NOT CAUSE OR ALLOW ANY IDENTIFYING INFORMATION~~
18 ~~TO BE TRANSMITTED TO ANY FEDERAL, STATE OR LOCAL GOVERNMENT ENTITY.~~

19 ~~C.}}~~~~{{B.}}~~ THIS SECTION DOES NOT APPLY TO ANY OF THE FOLLOWING:

20 1. A NEWS OR PUBLIC INTEREST BROADCAST OR PUBLICATION.

21 2. MATERIAL THAT IS DISTRIBUTED FOR BONA FIDE SCIENTIFIC, MEDICAL
22 OR EDUCATIONAL PURPOSES.

23 3. AN INTERNET SERVICE PROVIDER, AN INTERNET SERVICE PROVIDER'S
24 AFFILIATES OR SUBSIDIARIES, A SEARCH ENGINE OR A CLOUD SERVICE PROVIDER
25 THAT SOLELY PROVIDES ACCESS OR A CONNECTION TO OR FROM A WEBSITE OR OTHER
26 INFORMATION OR CONTENT ON THE INTERNET OR ON A FACILITY, SYSTEM OR NETWORK
27 THAT IS NOT UNDER THAT INTERNET SERVICE PROVIDER'S CONTROL, INCLUDING
28 TRANSMISSION, DOWNLOADING, INTERMEDIATE STORAGE, ACCESS SOFTWARE OR OTHER
29 SERVICES TO THE EXTENT THAT THE INTERNET SERVICE PROVIDER, SEARCH ENGINE
30 OR CLOUD SERVICE PROVIDER IS NOT RESPONSIBLE FOR THE CREATION OR DIRECT
31 HOSTING OF THE SEXUAL MATERIAL.

32 ~~{{D.}}~~~~{{C.}}~~ A COMMERCIAL ENTITY THAT PUBLISHES OR DISTRIBUTES
33 SEXUAL MATERIAL ON AN INTERNET WEBSITE WITHOUT ~~{{OBTAINING VERIFIED~~
34 ~~CONSENT FROM A DEPICTED INDIVIDUAL}}~~~~{{COMPLYING WITH SUBSECTION A OF THIS~~
35 ~~SECTION AND}}~~ IN VIOLATION OF THIS SECTION IS SUBJECT TO:

36 1. A CIVIL PENALTY OF \$10,000 FOR EACH DAY OF THE VIOLATION.

37 2. ACTUAL DAMAGES.

38 3. COSTS AND REASONABLE ATTORNEY FEES.

39 4. ADDITIONAL RELIEF, INCLUDING INJUNCTIVE RELIEF.

40 ~~{{D. THIS SECTION DOES NOT APPLY IF IT IS CLEAR TO A REASONABLE~~
41 ~~VIEWER THAT THE IMAGE, RECORDING OR VIDEO HAS BEEN BOTH:~~

42 ~~1. DIGITALLY MANIPULATED.~~

43 ~~2. CREATED FOR THE PURPOSES OF ANY OF THE FOLLOWING:~~

44 ~~(a) PARODY.~~

45 ~~(b) COMEDY.~~

46 ~~(c) ARTISTIC IMPRESSION.~~

47 ~~(d) CRITICISM OF MATTERS OF PUBLIC CONCERN.}}~~

48 E. THE ATTORNEY GENERAL MAY BRING AN ACTION TO ENFORCE THIS SECTION
49 AND, IN ADDITION TO ANY PENALTY PROVIDED FOR IN SECTION 13-3553, MAY SEEK

1 CIVIL PENALTIES OF UP TO \$250,000 IF A MINOR IS DEPICTED IN THE SEXUAL
2 MATERIAL THAT IS PUBLISHED OR DISTRIBUTED IN VIOLATION OF THIS SECTION.

3 F. THE FOLLOWING PERSONS MAY BRING A CIVIL ACTION PURSUANT TO THIS
4 SECTION:

5 1. THE ATTORNEY GENERAL.

6 2. AN INDIVIDUAL WHO IS DEPICTED IN THE SEXUAL MATERIAL AND WHO DID
7 NOT CONSENT TO THE DEPICTION.

8 G. FOR THE PURPOSES OF THIS SECTION:

9 1. "COMMERCIAL ENTITY" HAS THE SAME MEANING PRESCRIBED IN SECTION
10 44-7301.

11 2. "CONSENT" MEANS AFFIRMATIVE, CONSCIOUS AND VOLUNTARY
12 AUTHORIZATION THAT IS GIVEN BY AN INDIVIDUAL AND THAT IS DOCUMENTED AND
13 VERIFIABLE.

14 3. "DIRECT HOSTING":

15 (a) MEANS STORING SEXUAL MATERIAL ON SERVERS, SYSTEMS OR NETWORKS
16 THAT ARE CONTROLLED OR OPERATED BY THE COMMERCIAL ENTITY WHERE THE
17 COMMERCIAL ENTITY ENABLES USERS TO UPLOAD THE MATERIAL AND MAKES THE
18 MATERIAL ACCESSIBLE FOR VIEWING, DOWNLOADING, SHARING OR DISTRIBUTION BY
19 OTHER USES OR THE PUBLIC THROUGH THE ENTITY'S WEBSITE, APPLICATION OR
20 PLATFORM.

21 (b) DOES NOT INCLUDE ANY OF THE FOLLOWING:

22 (i) TRANSITORY DIGITAL NETWORK COMMUNICATIONS OR THE MERE PROVISION
23 OF INTERNET CONNECTIVITY OR ACCESS.

24 (ii) SYSTEM CACHING OR INTERMEDIATE STORAGE THAT IS INCIDENTAL TO
25 TRANSMISSION.

26 (iii) INFORMATION LOCATION TOOLS, INCLUDING SEARCH ENGINES, THAT
27 ONLY INDEX, LINK TO OR REFERENCE CONTENT THAT IS HOSTED BY A THIRD PARTY
28 WITHOUT STORING THE MATERIAL ON THE COMMERCIAL ENTITY'S CONTROLLED
29 SYSTEMS.

30 4. "DISTRIBUTE" HAS THE SAME MEANING PRESCRIBED IN SECTION 44-7301.

31 5. "IDENTIFIABLE INDIVIDUAL" MEANS A PERSON WHO IS RECOGNIZABLE BY
32 ANY PERSON, INCLUDING THE PERSON ~~{{THEMSELF}}~~ ~~{{HIMSELF}}~~, BY ANY PART OF
33 THE PERSON OR BY ANY OTHER INFORMATION THAT IS PART OF THE DEPICTION.

34 6. "PUBLISH" HAS THE SAME MEANING PRESCRIBED IN SECTION 44-7301.

35 7. "REASONABLE ~~{{CONSENT}}~~ VERIFICATION METHODS":

36 (a) MEANS ANY COMMERCIALLY REASONABLE METHOD THAT IS REGULARLY USED
37 BY BUSINESSES TO VERIFY CONSENT, ~~{{AGE OR THE DATE THE SEXUAL MATERIAL WAS
38 CREATED.}}~~ WITHOUT REQUIRING OR ALLOWING THE USE OF ANY GOVERNMENT-ISSUED
39 DIGITAL IDENTIFICATION SYSTEM.

40 (b) INCLUDES:

41 (i) AN AFFIDAVIT THAT ATTESTS TO THE CONSENT AND AGE OF EACH
42 DEPICTED PERSON ~~{{OR THAT ATTESTS TO THE DATE THE SEXUAL MATERIAL WAS
43 CREATED IF THE SEXUAL MATERIAL WAS CREATED BEFORE THE ENACTMENT OF THE
44 CHILD PROTECTION AND OBSCENITY ENFORCEMENT ACT OF 1988 (P.L. 100-690; 102
45 STAT. 4485)}}}~~.

46 (ii) A VERIFICATION THROUGH AN INDEPENDENT THIRD PARTY.

47 (iii) ANY OTHER COMMERCIALLY REASONABLE METHOD ~~{{THAT DOES NOT
48 RETAIN IDENTIFYING INFORMATION AFTER THE VERIFICATION IS COMPLETE}}}~~.

49 8. "SEXUAL MATERIAL" INCLUDES:

1 (a) SEXUAL MATERIAL THAT IS HARMFUL TO MINORS AS DEFINED IN SECTION
2 44-7301.

3 (b) A SYNTHETIC DEPICTION INVOLVING SEXUAL MATERIAL OF AN
4 IDENTIFIABLE INDIVIDUAL.

5 9. "SYNTHETIC DEPICTION" MEANS ANY VISUAL DEPICTION THAT IS CREATED
6 OR ALTERED THROUGH THE USE OF ARTIFICIAL INTELLIGENCE, DIGITAL
7 MANIPULATION OR OTHER TECHNOLOGY AND THAT APPEARS TO DEPICT AN
8 IDENTIFIABLE INDIVIDUAL BUT THAT DOES NOT REPRESENT AN ACTUAL EVENT OR
9 CONDUCT INVOLVING THAT INDIVIDUAL.

10 Sec. 4. Severability

11 If a provision of this act or its application to any person or
12 circumstance is held invalid, the invalidity does not affect other
13 provisions or applications of the act that can be given effect without the
14 invalid provision or application, and to this end the provisions of this
15 act are severable.

16 Sec. 5. Short title

17 This act may be cited as the "Protect Act".

18 Enroll and engross to conform

19 Amend title to conform

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